

**Line 8**

Case Name: *Vimal Kohli v. Vishal Saxena, et al.*

Case No.: 25CV456459

**SUPERIOR COURT OF CALIFORNIA**

**COUNTY OF SANTA CLARA**

Plaintiff Vimal Kohli (“Plaintiff”) moves under Code of Civil Procedure Section 473(b) on both mandatory and discretionary grounds to set aside the Court’s Order entered on November 26, 2025, which among other things Sustained Without Leave to Amend Defendant’s Demurrer to Plaintiff’s First Amended Complaint (“FAC”). Notice of Motion (the “Motion”) at 1:25-2:2 (filed: Jan. 22, 2026). Plaintiff asserts that this relief is warranted because Plaintiff’s failure to timely file opposition papers (to Defendant’s Demurrer and Defendant’s Motion to Strike Portions of Plaintiff’s First Amended Complaint) was the result of mistake, inadvertence, surprise, and excusable neglect. *Id.* at 2-3.

The Motion came on for hearing on July 15, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

The Court agrees with most, but not all, of the arguments made in Plaintiff’s Reply papers.

First, the Court agrees with Plaintiff that the Court’s Order entered on November 26, 2025, which among other things Sustained Without Leave to Amend Defendant’s Demurrer to Plaintiff’s FAC, is, ought to be, and will here be treated as a *dismissal* for purposes of the analysis under Code of Civil Procedure Section § 473(b). Pl. Sur-Reply In Support of Motion (“Reply”) at 4:9-6:23. Sustaining the demurrer *without* leave to amend ended Plaintiff’s claims and case.

And because the Court rules that its November 26, 2025 Order Sustaining the Demurrer Without Leave to Amend is a dismissal for purposes of the Section 473(b) analysis, it follows as a matter of logic and law that the mandatory provision of Section 473(b) applies here: “the court shall, whenever an application for relief is made no more than six months after entry of judgment, is in proper form, and is accompanied by an attorneys’ sworn affidavit attesting to the attorney’s mistake, inadvertence, surprise, or neglect, vacate any . . . (2) resulting . . . *dismissal* . . . entered against the attorney’s client[.]” C.C.P. § 473(b) (emphasis added).

Having found the mandatory relief provision applies here, the Court further agrees with Plaintiff that “[t]he mandatory relief provision requires only that the attorney submit a declaration stating [under oath] that the default or dismissal was caused by the attorney’s mistake, inadvertence, surprise, or neglect.” Reply at 7:17-18.

And here, the Court further agrees with Plaintiff that the Declaration of attorney Dylan Hackett, Esq., of the Hackett Law Firm, which was timely filed, established that the fault of attorney Hackett caused the November 26, 2026 Order that operates as a dismissal of Plaintiff's case. Reply at 7:16-8:8 (detailing that Counsel's Declaration Satisfies the Affidavit of Fault Requirement). Lest there be any doubt, the Court now finds that his Declaration shows this dismissal was in fact *caused* by the neglect of attorney Dylan Hackett, Esq., of the Hackett Law Firm, such that the Court is required to and does now VACATE November 26, 2025 Order under the mandatory provision of Section 473(b).

Accordingly, the Court GRANTS Plaintiff's Motion to Vacate the Court's November 26, 2025 Order under the mandatory provision of Section 473(b).<sup>2</sup>

Moreover, for clarity of the record, so there is no doubt as to the operative pleading going forward, the Court in the broad exercise of its discretion now GRANTS the further request in this Motion to give Plaintiff leave to file the Second Amended Complaint that Plaintiff attached as Exhibit B to this Motion.

Accordingly, Plaintiff is ORDERED to file this Second Amended Complaint within 10 days of today.<sup>3</sup> Defendant, in turn, has the right to Answer or Respond to the Second Amended Complaint in any manner allowed, and within the time period allowed, by the Code of Civil Procedure.

All that said, the Court disagrees with Plaintiff when it comes to the issue of awarding sanctions against Plaintiff's counsel Hackett now. As the Court has now granted Plaintiff's own Motion for relief under the mandatory provision of Section 473(b) based on attorney Hackett's sworn Declaration of fault, the Court is required to award mandatory monetary sanctions to be paid by attorney Hackett himself now. The plain text of Section 473(b), which Plaintiff invoked by bringing this Motion, states: "the court shall, whenever relief is granted based on an attorneys' affidavit of fault, *direct the attorney* to pay reasonable compensatory legal fees and costs to opposing counsel or parties." C.C.P. § 473(b) (emphasis added).

In light of that plain statutory text, Plaintiff's argument that the Court should not award attorney's fees because Section 473(b) "is not [meant] to punish *the innocent client*" (Reply at 13:7) (emphasis added) misses the point entirely. For the Court is not going to award *any* monetary sanction at all against his *innocent client* who is Plaintiff

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<sup>2</sup> Since the Court Grants the Motion under the mandatory provision, the Court need not and does not address the plethora of arguments of the parties about whether the discretion provision of Section 473(b) applies or not.

<sup>3</sup> Moreover, since the Court now gives Plaintiff's leave to file its *Second* Amended Complaint, the Court need not and does not now address any arguments made in Defendant's Demurrer to (and Motion to Strike Portions of) the *First* Amended Complaint, which are now moot.

Vimal Kohli—but the Court is going award a monetary sanction against and to be paid directly by attorney Dylan Hackett himself. Which is exactly what Section 473(b) requires.

And this is only fair. Reading attorney Hackett's Declaration, attorney Hackett himself swears that he "take[s] full responsibility" for the neglect that resulted in the dismissal here. Hackett Decl. at ¶ 6. His client did not cause the dismissal, attorney Hackett and his Hackett Law Firm did. Therefore, the Court ORDERS that attorney Hackett himself will pay the monetary sanction that the Court awards in this Order. And Attorney Hackett is ORDERED not to seek reimbursement from his innocent client for any of this monetary sanction.

Attorney Hackett's fault caused this dismissal; Attorney Hackett's fault caused all the time and effort that Defendant has had to spend to brief, argue, and oppose this Motion; so Attorney Hackett himself will pay this mandatory monetary sanction. C.C.P. § 473 (b).

While the Court interprets Section 473(b) to require Attorney Hackett himself to pay this monetary sanction for Defendant's reasonable attorneys' fees incurred for opposing this Motion, the determination of what amount attorneys' fees is reasonable here is within the broad discretion of this Court.

Here, Defendant requests \$10,000 for its attorneys' fees incurred in opposing this Motion, specifically comprising \$5,100 for the work of principal attorney Ondrej Likar for 8.5 hours of work at an hourly rate of \$600 per hour, plus \$4,900 for the work of associate attorney Nicholas N. Stotter for 14 hours of work at an hourly rate of \$350 per hour. Declaration of Ondrej Likar In Support of Defendant's Opposition to Motion at ¶ 10 (filed: July 1, 2026).

In light of the relevant legal market in California, the Court finds the hourly rates sought for attorney Likar and attorney Stotter, \$600 per hour and \$350 per hour, respectively, to be reasonable.

Considering the relatively complexity of the Motion, including all the lengthy new arguments that Plaintiff presented in Plaintiff's "Sur-Reply" papers that Defendant has had to prepare to address at the July 15, 2026 hearing, the Court finds that the 8.5 hours of work sought by principal attorney Likar to be reasonable. But the Court finds the 14 hours of work for the assistance performed by associate attorney Stotter to be unreasonable, too much, and so the Court reduces the number of hours for which a sanction will be paid for attorney Stotter's work from 14 to 4 hours. So the Court finds that the reasonable number of hours for attorney Likar's work for this Motion is 8.5 hours, and the reasonable number of hours for attorney Stotter's work is 4.0 hours.

Accordingly, the total amount of the monetary sanction that will be paid by Plaintiff's Attorney Hackett for the reasonable attorneys' fees incurred by Defendant for this Motion is **\$6,500.00**, which equals \$5,100 for principal attorney Likar's work (\$5,100 = 8.5 hours at \$600 hour), plus \$1,400 for associate attorney Stotter's work

(\$1,400 = 4.0 hours at \$350 per hour). The Court further Orders that attorney Hackett himself will pay this \$6,500.00 monetary sanction to defense counsel within 60 days of today.

### **Conclusion & Order**

Accordingly, the Court **GRANTS** Plaintiff's Motion as follows. Specifically, the Court **ORDERS**:

1. The Court's Order entered on November 26, 2025, which Sustained Without Leave to Amended Defendant's Demurrer to the First Amended Complaint, and Granted Defendant's Motion to Strike Portions of the First Amended Complaint, is hereby **VACATED** under the mandatory provision of Code of Civil Procedure Section 473(b).
2. Within ten days of today, Plaintiff is **ORDERED** to file its Second Amended Complaint. Defendant, in turn, may Answer or Respond to the Second Amended Complaint in any manner allowed, and within the time allowed, by the Code of Civil Procedure.
3. Within 60 days of today, attorney Dylan Hackett, Esq., of The Hackett Law Firm, is **ORDERED** himself to pay \$6,500.00 to defense counsel as a monetary sanction for Defendant's reasonable attorneys' fees incurred for this Motion under Code of Civil Procedure Section 473(b).

**SO ORDERED.**

Date: July 15, 2026

Hon. Vincent I. Parrett  
Superior Court of the State of California,  
County of Santa Clara

**Line 9**

Case Name: *Anthony Tomol v. Ford Motor Company, et al.*

Case No.: 25CV478692

**SUPERIOR COURT OF CALIFORNIA**

**COUNTY OF SANTA CLARA**

Defendant Hemborg Ford (“the Dealership”) moves under the Federal Arbitration Act (9 U.S.C. § 1 *et seq.*) and Code of Civil Procedure Section 1281.4 to compel arbitration and stay this civil action pending the completion of that arbitration. Notice of Motion (the “Motion”) at 1:4-20 (filed: Dec. 8, 2025).

The Motion came on for hearing on July 15, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

**Background**

According to the Complaint, Plaintiff Anthony D. Tomol (Plaintiff) purchased a 2021 Ford Mustang Mach-E (Subject Vehicle) in November 2021 from the Dealership. (Complaint at ¶ 7.) Plaintiff delivered the Subject Vehicle to the Dealership for substantial repair on at least one occasion. (*Id.* at ¶ 47.) Plaintiff alleges that the Dealership “breached its duty to Plaintiff to use ordinary care and skill by failing to properly store, prepare, and repair the Subject Vehicle in accordance with industry standards.” (*Id.* at ¶ 49.) Plaintiff sued the Dealership and Ford Motor Company in October 2025. The sole cause of action alleged against the Dealership is for negligent repair.

At issue is the Dealership’s Motion to compel arbitration, based on the Retail Installment Sales Contract (RISC) signed by Plaintiff and the Dealership when Plaintiff purchased the Subject Vehicle. Having reviewed the language of the RISC’s arbitration provision and the circumstances of its execution, the Court **GRANTS** the Motion and **STAYS** this civil action in its entirety until that arbitration is complete.

**Legal Standard on Motion to Compel Arbitration**

The Dealership asserts that the Federal Arbitration Act (FAA) governs the arbitration provision based on the language itself and because the agreement affects interstate commerce. (Mtn. to Compel Arbitration at pp. 6:25-7:1.) The Court agrees. The RISC’s arbitration provision states “[a]ny arbitration under this Arbitration Provision shall be governed by the Federal Arbitration Act (9 U.S.C. §§ 1 *et seq.*) and not by any state law concerning arbitration.” (Declaration of Trina Clayton [“Clayton Decl.”], Ex. A.)

Under the FAA, the Court’s role in deciding this Motion is limited to determining “(1) whether a valid agreement to arbitrate exists, and if it does (2) whether the agreement encompasses the dispute at issue.” (*Chiron Corp. v. Ortho Diagnostic Systems, Inc.* (9th